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ATTEST
This document is a correct copy of the original on file in the office of the City Clerk of the City of American Canyon, County of Napa, State of California
By _____ Date 6/30/2026

RESOLUTION NO. 2026-57

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF AMERICAN CANYON SUBMITTING A PROPOSED TRANSACTIONS AND USE TAX TO THE CITY'S VOTERS AT THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026

WHEREAS, pursuant to Resolution No. 2026-39, the City Council called a general municipal election for Tuesday, November 3, 2026, to be consolidated with the statewide election that same day (the "Election"); and

WHEREAS, the City Council of the City of American Canyon wishes to present a transactions and use tax ordinance, attached hereto as Exhibit A (the "Ordinance"), to the City's voters at the Election; and

WHEREAS, the Ordinance would impose a new general tax of one percent on the retail sale, or the use and consumption, of tangible personal property within the City; and

WHEREAS, the City Council seeks assistance from the Napa County Assessor / Recorder / County Clerk / Registrar of Voters ("County Elections Official") to include the Ordinance in the Election.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF AMERICAN CANYON, DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. The City Council previously called and noticed a general municipal election to be held on November 3, 2026 (the "Election"). Pursuant to the laws of the State of California, the City Council hereby submits the Ordinance to the voters at the Election and orders the following question appear on the ballot for the Election:

Measure P

American Canyon Public Safety, Parks, City Services Measure. Shall an ordinance funding American Canyon's general City services, such as maintaining 911 response / neighborhood police patrols; preventing crime; reducing wildfire risk by managing brush / other flammable vegetation; addressing speeding / unsafe driving; keeping public areas / parks safe / clean; maintaining and expanding safe places for children to play; maintaining parks, trails, youth / adult recreation, senior programming, among others; by establishing a 1% sales tax, providing approximately $3,700,000 annually until ended by voters, requiring audits, spending disclosure, funds locally controlled, be adopted?	Yes __X__ No ____

The full Ordinance comprising this measure is attached hereto as Exhibit A and is incorporated herein by this reference. The Ordinance requires the approval of a simple majority (50% plus one) of those voting on it.

SECTION 2. The City Council hereby asks the Napa County Board of Supervisors ("Board of Supervisors") to authorize the County Elections Official to render all services necessary to conduct the Election. The City Council hereby asks the Board of Supervisors to consolidate the Election with any other election the County Elections Official is to administer on November 3, 2026, and to order the Election to be conducted by the County Elections Official. (Elec. Code, §§ 10402, 10403.) The City Council acknowledges that the Election will be held and conducted in the manner prescribed in Elections Code section 10418. The ballots to be used in the election shall be in form and content as required by law.

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The City Clerk is authorized and directed to work with the County Elections Official and to procure and furnish any and all official ballots, notices, printed matter and all supplies, equipment and paraphernalia as needed to properly and lawfully conduct the Election. In all particulars not recited in this Resolution, the Election shall be held and conducted as provided by law for holding municipal elections. The City of American Canyon will reimburse Napa County for the actual costs incurred in conducting the Election upon receipt of a bill stating the amount due.

The notice of the time and place of holding the Election is hereby given, and the City Clerk and County Elections Official are authorized to give further notice of the Election as required by law.

SECTION 3. The City Clerk is directed to file certified copies of this Resolution with the Board of Supervisors, with a copy to the County Elections Official. (Elec. Code, § 10402.) The City Clerk is further authorized and directed to perform all other acts necessary or required by law to implement this Resolution and related to the Election.

SECTION 4. The City Clerk shall set the deadline for submission of arguments in favor of or against the Ordinance and provide notice of that deadline. The City Clerk may do this in coordination with the County Elections Official, as necessary. In all respects, the process to choose these arguments shall accord with Elections Code sections 9280 et seq. and 9600 et seq.

The City Council hereby authorizes any and all Councilmembers to prepare and file the written argument in support of the measure on behalf of the City Council. (Elec. Code, § 9282(b).)

Further, the City Council hereby adopts the provisions of Elections Code section 9285(a) authorizing rebuttal argument only as to arguments for the Election. This Subdivision 4(C) is repealed, and the provisions of section 9285(a) shall not apply, thereafter.

SECTION 5. The City Clerk is directed to transmit a copy of the Ordinance to the City Attorney, who shall prepare an impartial analysis of the Ordinance in accordance with applicable law. The impartial analysis shall indicate that the measure was placed on the ballot by the City Council.

If the entire text of the Ordinance is not printed in the voter information pamphlet, the following shall be printed immediately below the impartial analysis in no smaller than 10-point type: "The above statement is an impartial analysis of Measure P. The full text of Measure P can be found online at [URL]. If you desire the measure, please call the election official's office at 707-647-4369 and a copy will be mailed at no cost to you."

SECTION 6. The adoption of this Resolution is exempt from the California Environmental Quality Act (CEQA), Public Resources Code section 21000 et seq. and California Code of Regulations, title 14, section 15000 et seq. (CEQA Guidelines). The calling of a municipal election is not a project within the meaning of CEQA Guidelines section 15378. Further, the general tax proposed by this Resolution is a government funding mechanism that does not involve any commitment to any specific project which may result in a potentially significant physical impact on the environment, and thus adopting this Resolution is not a project under CEQA Guidelines section 15378(b)(4).

SECTION 7. If any section, subsection, sentence, clause, phrase or portion of this Resolution or its application to any person or circumstance is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Resolution or its application to other persons and circumstances. The City Council hereby declares that it would have adopted this Resolution and each section, subsection, sentence, clause, phrase or portion thereof irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases, or

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portions be declared invalid or unconstitutional and, to that end, the provisions hereof are hereby declared to be severable.

SECTION 8. The City Clerk shall certify the adoption of this Resolution, which shall be effective upon its adoption, and shall give notice of the measure to be voted on in the manner provided by law.

PASSED, APPROVED, AND ADOPTED at a regular meeting of the City Council of the City of American Canyon held on the 16th day of June 2026, by the following vote:

AYES: Councilmember Brando Cruz, Councilmember Melissa Lamattina, Councilmember David Oro, Mayor Pierre Washington
NOES: Vice Mayor Mark Joseph
ABSTAIN: None
ABSENT: None

Signed by:
A60975A8B57D4C9...
Pierre Washington, Mayor

ATTEST:

Signed by:
Nicolle Hall
3CF365066559444...
Nicolle Hall, CMC, Deputy City Clerk

APPROVED AS TO FORM:

DocuSigned by:
Matthew Summers
04DF74093C5347D...
Matthew Summers, City Attorney